

NOTE: I worked on this brief with a partner. I've removed all the sections we worked on together but left the Preliminary Statement to provide some context. Argument II is entirely my work.

PRELIMINARY STATEMENT

Concerned Citizens of Cairo (“CCC”), a non-governmental organization, petitioned for a court order in the United States District Court for the District of Massachusetts to obtain limited discovery under 28 U.S.C. § 1782 from Raiders and Associates, LLC (“Raiders America”) for use in ongoing litigation in the United Kingdom's Central London County Court. CCC's § 1782 petition sought communications between Raiders America and the British Museum concerning the acquisition of artifacts from Egypt. Raiders America's parent company, Raiders and Associates, Ltda. ('Raiders Worldwide'), stores those communications in Brazil. The district court denied CCC's petition for discovery after Raiders America intervened in opposition. Although the district court held that § 1782's “resides or is found” requirement incorporates personal-jurisdiction principles and that the court possessed specific jurisdiction over Raiders America, it concluded that § 1782 does not apply extraterritorially and therefore cannot be used to compel production of documents maintained in Brazil by Raiders America's parent company. CCC timely appeals.

II. Section 1782 Authorizes Discovery of Documents Raiders America Generated in Cambridge, Regardless of Where They are Now Stored.

Under the extraterritoriality framework this Court applied in *Abbas*, courts ask first whether the presumption against extraterritoriality has been rebutted and, if not, whether the case involves a permissible domestic application by examining the statute's “focus.” *RJR Nabisco*, 579 U.S. at 337; *United States v. Abbas*, No. 24-1831, slip op. at 22 (1st Cir. Jan. 29, 2026).

Section 1782 authorizes the discovery CCC seeks at every step of this analysis. The presumption does not apply to a purely jurisdictional discovery mechanism like § 1782, and even if it did, Congress rebutted it by incorporating the Fed. R. Civ. P, its legislative history, and its consistent pattern of expansion. Moreover, because § 1782 focuses on the district court's authority over persons found within its jurisdiction, not the location of documents, ordering Raiders America to produce documents it generated in Cambridge is a permissible domestic application regardless of where those documents are now stored.

A. The presumption against extraterritoriality does not bar § 1782 discovery of documents located abroad.

The presumption is “typically applied to discern whether an Act of Congress regulating conduct applies abroad,” *Kiobel v. Royal Dutch Petroleum Co.*, 569 U.S. 108, 116 (2013).

Section 1782 does not regulate conduct; it is “simply a discovery mechanism” that “does not subject a person to liability.” *In re Edelman*, 295 F.3d at 179. But even if it applies, Congress rebutted it through the Fed. R. Civ. P incorporation, legislative history, and a consistent pattern of expansion. *See Morrison v. Nat'l Austl. Bank Ltd.*, 561 U.S. 247, 265 (2010) (an express statement of extraterritoriality is not essential).

1. The presumption does not apply to § 1782 because it is a purely jurisdictional discovery mechanism that neither regulates conduct nor creates a cause of action.

The Supreme Court has never applied the presumption to a "strictly jurisdictional" statute, "not otherwise tethered to regulating conduct or providing a cause of action." *In re del Valle Ruiz*, 939 F.3d at 532 (citing *Kiobel*, 569 U.S. at 116; Restatement (Fourth) of the Foreign Relations Law of the United States § 404 cmt. a & reporters' note 3 (Am. Law Inst. 2018)). This court has previously categorized § 1782 as “a mechanism for obtaining discovery”. *In re Schlich*, 893 F.3d at 46. Section 1782 creates no cause of action and imposes no liability. It merely

enables a district court to order discovery from those within its jurisdiction. The presumption has no role here.

Courts have consistently distinguished jurisdictional provisions from substantive provisions, applying the presumption only to the latter. In *Morrison*, the Court applied the presumption to § 10(b), a provision prohibiting fraudulent conduct, while simultaneously holding the district court “had jurisdiction to adjudicate the § 10(b) question.” 561 U.S. at 254. Similarly, in *Nabisco*, the Court applied the presumption to the Racketeer Influenced and Corrupt Organizations (RICO) Act's substantive provisions but maintained it held jurisdiction under § 1332. 579 U.S. at 337–46. Because the presumption exists to determine whether substantive legal obligations extend beyond U.S. borders, *see id.*, and § 1782 imposes none, the presumption should not apply.

2. Congress’s incorporation of the Fed. R. Civ. P., which was already construed to authorize extraterritorial discovery, is a clear indication of extraterritorial intent.

To rebut the presumption, a statute must contain “a clear, affirmative indication that it applies extraterritorially”. *RJR Nabisco*, 579 U.S. at 337. However, “an express statement of extraterritoriality is not essential” as “context can be consulted as well”. *Morrison*, 561 U.S. at 265; accord *RJR Nabisco*, 579 U.S. at 336. In *Nabisco*, the court held that RICO overcame the presumption because it incorporated predicates that “plainly apply to at least some foreign conduct.” 579 U.S. at 338.

Congress's incorporation of the Fed. R. Civ. P., which was already recognized to authorize extraterritorial discovery, is a clear indication of § 1782's extraterritorial intent. In 1964, Congress amended § 1782 to state that discovery and document production shall occur “in accordance with the Federal Rules of Civil Procedure.” 28 U.S.C. § 1782(a). Six years prior, the court applied Rule 34's “possession, custody, or control” standard to compel production of

banking records held in Switzerland. *Société Internationale Pour Participations Industrielles et Commerciales, S.A. v. Rogers*, 357 U.S. 197, 200 (1958). When Congress incorporates existing law by reference, it can be presumed Congress “had knowledge of the interpretation given to the incorporated law... as it affects the new statute.” *Lorillard v. Pons*, 434 U.S. 575, 581 (1978).

Just as RICO's incorporation of extraterritorial predicates provided a “clear, affirmative indication” of extraterritorial reach, *Nabisco*, 579 U.S. at 338, so too does § 1782's incorporation of the already-extraterritorial Fed. R. Civ. P. The Second Circuit affirmed this in *In re del Valle Ruiz*, reasoning “Congress's incorporation of the Federal Rules of Civil Procedure, which had by then been interpreted to allow for extraterritorial discovery... is sufficient to overcome the presumption.” 939 F.3d at 532 n.14.

The incorporation of the Fed. R. Civ. P indicates that no document location bar exists. Section 1782 authorizes courts to issue a subpoena duces tecum. *See Intel Corp.*, 542 U.S. at 249. Fed. R. Civ. P. 45 governs subpoena duces tecum. And, “the only geographical limitation provided by Rule 45 concerns the location for the act of production—*not the location of the documents* or information to be produced (Rule 45(c) (2) (A)).” *Sergeeva v. Tripleton Int'l Ltd.*, 834 F.3d 1194, 1200 (11th Cir. 2016) (emphasis added). Similarly, in *Société Internationale*, the court interpreted the “possession, custody, or control” standard outlined in Fed. R. Civ. P. 26 and 34 (concerning discovery and document production) and found *no geographic restriction on where documents must be stored*. 357 U.S. at 205–06 (emphasis added). Unless the district court prescribes otherwise, the Fed. R. Civ. P controls document production under § 1782. Here, the district court did not, and thus the entirety of the Fed. R. Civ. P, including its extraterritorial reach, applies.

3. Legislative history evinces Congress’s consistent pattern of expanding the scope of § 1782 and confirms its intent for extraterritorial use.

For nearly 150 years, legislative history and amendments to § 1782 show Congress's consistent intent to expand the statute's reach. The Supreme Court in *Intel* reviewed § 1782's history in detail. When Congress first enacted the statute in 1855, it was limited to discovery obtained through letters rogatory issued by foreign courts. *Intel Corp.*, 542 U.S. at 247. In 1948, Congress substantially broadened the statute, eliminating the requirement that a foreign government be a party and made it applicable to “any civil action pending in any court in a foreign country.” *Id.* at 248. The next year, Congress replaced “civil action” with “judicial proceeding.” *Id.* In 1964, Congress replaced “in any judicial proceeding pending in any court in a foreign country” with “in a proceeding in a foreign or international tribunal,” opening the statute to non-traditional courts. *Id.* at 248–49. Congress also incorporated the Fed. R. Civ. P., which authorized extraterritorial discovery, clarifying the statute's extraterritorial reach. Finally, in 1996, Congress expanded the statute again, and the Supreme Court found that “nothing suggest[ed] that this amendment was an endeavor to rein in, rather than to confirm, by way of example, the broad range of discovery authorized in 1964.” *Id.* at 259.

Legislative reports indicate the 1964 amendments to § 1782 were intended to “clarif[y] and liberaliz[e] existing U.S. procedures for assisting foreign and international tribunals and litigants in obtaining oral and documentary evidence,” as part of a bill that amended several statutes to better assist international judicial cooperation. S. REP. NO. 88-1580, at 7 (1964), as reprinted in 1964 U.S.C.C.A.N. 3782, 3788.

In *Intel*, the Supreme Court recognized this pattern and refused to impose “categorical limitations” that Congress itself declined to enact. *See* 542 U.S. at 260–62. Similarly, this court should reject a per se rule based on document location, given Congress repeatedly declined to

impose one. Likewise, § 1782 does not contain an exhaustion requirement that requires CCC to seek the documents in Brazil first, and this court should not read one into existence. The Second Circuit already considered the issue and found “nothing in the text” of § 1782 supports “a quasi-exhaustion requirement.” *In re Malev Hungarian Airlines*, 964 F.2d 97, 100 (2d Cir. 1992).

The district court relied on a quote by Hans Smit, one of § 1782's principal drafters, to infer that legislative intent opposed extraterritorial application. J.A. 11. But Smit made this remark to disapprove of forum shopping, not the extraterritorial application of § 1782. The case Smit discussed involved two Spanish parties in a Spanish court, with one attempting to use § 1782 to obtain evidence located in Spain, circumventing Spanish discovery rules. In that same article, Smit notes, “[a] sharp distinction should be made between recourse to § 1782 to obtain evidence located in the United States for use in a proceeding abroad and recourse to § 1782 to obtain evidence located in a foreign country for use in that action.” Hans Smit, *American Assistance to Litigation in Foreign and International Tribunals: Section 1782 of Title 28 of the U.S.C. Revisited*, 25 Syracuse J. Int'l L. & Com. 1, 11 n.49 (1998).

CCC seeks American-generated documents from an American company for use in a British proceeding, mirroring the first scenario, which Smit deems permissible. The Second Circuit considered and rejected the district court's reading of Smit in *In re del Valle Ruiz*, holding that “given the plain meaning of the statute, these considerations are insufficient to win the day.” 939 F.3d at 533 n.16. *See also Bruesewitz v. Wyeth LLC*, 562 U.S. 223, 242 (2011) (characterizing post-enactment commentary as “not a legitimate tool of statutory interpretation”).

B. Even if the presumption is not rebutted, ordering Raiders America to produce these documents is a permissible domestic application of § 1782.

This Court does not need to resolve whether the presumption is rebutted to rule in favor of CCC. In *Abbas*, this Court began with Step 2 because the statute “contain[ed] difficult

questions about whether Congress intended the statute to apply extraterritorially." *Abbas*, slip op. at 21-22 (quoting *United States v. McLellan*, 959 F.3d 442, 468 (1st Cir. 2020)). *McLellan* itself did the same, skipping Step 1 entirely. 959 F.3d at 468. The same approach is warranted here as courts are split on § 1782's extraterritorial reach. *See In re del Valle Ruiz*, 939 F.3d at 532 n.15. This Court need not resolve the divide because under Step 2, this case involves a permissible domestic application.

1. Section 1782's "focus" is the district court's authority over persons within the United States, making this a domestic application even though some effects are felt abroad.

Under Step 2, courts must identify the statute's "focus" and ask whether related conduct occurred in the United States. *Abbas*, slip op. at 21 (citing *RJR Nabisco*, 579 U.S. at 337). A statute's focus is "'the object of its solicitude,' which can include the conduct it 'seeks to regulate' as well as the parties and interests it 'seeks to protect' or vindicate." *WesternGeco LLC v. ION Geophysical Corp.*, 585 U.S. 407, 413–14 (2018) (quoting *Morrison*, 561 U.S. at 267). To identify the focus, courts examine the statute's text and structure to determine the object of "congressional concern." *Morrison*, 561 U.S. at 266. Yet the focus is not necessarily "what the statute authorizes," *WesternGeco*, 585 U.S. at 418, but the underlying conduct, parties, or interests that prompted Congress to legislate. *See Morrison*, 561 U.S. at 266–67. If the conduct relevant to the focus occurred in the United States, the case involves a permissible domestic application "even if other conduct occurred abroad." *RJR Nabisco*, 579 U.S. at 337. Step 2 applies the presumption to claims involving both domestic and foreign activity, "separating the activity that matters from the activity that does not." *Abitron Austria GmbH v. Hetronic Int'l, Inc.*, 143 S. Ct. 2522, 2529 (2023).

Morrison instructs courts to identify the focus by asking who or what prompted Congress to legislate: the "parties or prospective parties" the statute was made to protect. 561 U.S. at 267.

Legislative history confirms Congress wrote § 1782 to empower district courts to assist "foreign and international tribunals and litigants." S. REP. NO. 88-1580, *supra*, at 7. The statute accomplishes this by giving district courts authority over persons found within their jurisdictions. While the court may order document production, that is simply the mechanism through which the court exercises this authority, not the statute's focus.

A textual analysis confirms this. Section 1782 opens: "The district court of the district in which a person resides or is found may order him to give his testimony or statement or to produce a document or other thing for use in a proceeding in a foreign or international tribunal." 28. U.S.C. § 1782(a). The grammatical subject is the district court. The object of the court's authority is the person who "resides or is found" in the district. Section 1782 (b) provides that persons within the United States "may voluntarily give" testimony or produce evidence without a court order. Both subsections focus on the relationship between the court and the person.

The district court never performed this analysis. It treated Raiders America's choice to store documents in Brazil as dispositive. In contrast, this Court in *Abbas* recently established new precedent: finding a wire transfer originating in Kenya but received in the defendant's Illinois bank account was a permissible domestic application of the wire fraud statute, because the conduct relevant to the statute's focus (the domestic use of the wires) occurred in the United States. Slip op. at 23.

Here, the conduct relevant to § 1782's focus is entirely domestic. The District Court of Massachusetts is exercising authority over Raiders America, a New Mexico LLC headquartered in California, through Marcus Brady, who works in Raiders' Cambridge office. The court's order would compel Brady to produce documents generated in the United States by American

employees. Every element relevant to § 1782's focus (the court, the person, the district) is domestic. The documents' foreign location is incidental to this domestic application.

2. A per se document-location bar defeats § 1782's purpose and produces results Congress enacted the statute to prevent.

The *Intel* Court rejected a similarly categorical restriction on § 1782. There, the respondent argued that § 1782 discovery should be limited to materials that would be discoverable in the foreign jurisdiction. The Court refused, holding that such a requirement “would serve only to thwart § 1782(a)'s objective to assist foreign tribunals in obtaining relevant information that the tribunals may find useful but, for reasons having no bearing on international comity, they cannot obtain under their own laws.” 542 U.S. at 262. Courts “are not free to read extra-statutory barriers to discovery into section 1782.” *In re Application of Gianoli Aldunate*, 3 F.3d 54, 59 (2d Cir. 1993). Nothing in § 1782's text justifies a per se location bar, and this court should not impose one.

The consequences of such a restriction are apparent here. All parties agree the *Intel* discretionary factors favor discovery. J.A. 23 (Joint Stipulation ¶ 2). Yet under the district court's ruling, CCC's only path to these documents is to petition the courts of Brazil—a country with no connection to CCC's dispute or the British Museum. And CCC must seek documents from Raiders Worldwide, a different entity from the discovery target, all parties agree is appropriate. J.A. 23 (Joint Stipulation ¶ 4). Congress enacted § 1782 so that litigants could obtain evidence from persons within U.S. jurisdiction without precisely this kind of multi-jurisdictional runaround. *See Intel Corp.*, 542 U.S. at 249. The district court's ruling rejects that purpose: an American company, based in Massachusetts and generating documents in Cambridge, can place those documents beyond § 1782's reach simply by storing them across the border.

“Interpretations of a statute which would produce absurd results are to be avoided if

alternative interpretations consistent with the legislative purpose are available.” *Griffin v. Oceanic Contractors, Inc.*, 458 U.S. 564, 575 (1982). An interpretation that defeats § 1782's objectives, rewards a corporation for shipping documents overseas, and forces a litigant into a foreign court system to obtain evidence an American court is fully empowered to order produced is not a permissible reading of the statute.

CONCLUSION

The court should grant CCC's petition for discovery under 28 U.S.C. § 1782.

Respectfully submitted,

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s/ Josh Samuel
Josh Samuel

s/ Partner
Partner

Attorneys for Appellant-Petitioner